

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Teecie Dove	Team: Squad #2	CCRB Case #: 202204715	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/14/2022 7:30 PM	Location of Incident: 118 Featherbed Lane	Precinct: 46	18 Mo. SOL 1/14/2024	EO SOL 1/14/2024	
Date/Time CV Reported Mon, 07/18/2022 2:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/18/2022 2:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ariel Cruz	01114	951644	046 PCT
2. PO Carolyn Daley	09308	967471	046 PCT
3. PO Daniel Demarco	03893	964483	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.PO Daniel Demarco	Abuse: Police Officer Daniel Demarco stopped § 87(2)(b)	
B.SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz stopped § 87(2)(b)	
C.PO Carolyn Daley	Abuse: Police Officer Carolyn Daley stopped § 87(2)(b)	
D.PO Daniel Demarco	Abuse: Police Officer Daniel Demarco frisked § 87(2)(b)	
E.SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz frisked § 87(2)(b)	
F.PO Daniel Demarco	Abuse: Police Officer Daniel Demarco searched § 87(2)(b)	
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		
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§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on July 18th, 2022, on the behalf of his cousin § 87(2)(b).

On July 14th, 2022, at approximately 7:30 PM, § 87(2)(b) and his cousins § 87(2)(b) and § 87(2)(b) were standing on the corner of Nelson Avenue and Featherbed Lane in the Bronx, where they were observed by Sergeant Ariel Cruz, Police Officer Daniel Demarco, and Police Officer Carolyn Daley of the 46th Precinct. Upon noticing the officers, § 87(2)(b) and § 87(2)(b) walked to the opposite end of the block and entered Yoly, a restaurant located at 118 Featherbed Lane in the Bronx. The officers followed them into the restaurant and approached § 87(2)(b) (Allegations A, B, and C: Abuse of Authority – Stop, § 87(2)(g)). Police Officer Demarco frisked § 87(2)(b) (Allegations D and E: Abuse of Authority – Frisk, § 87(2)(g)). Police Officer Demarco allegedly reached his hand into § 87(2)(b)'s right pocket during the frisk (Allegation F: Abuse of Authority – Search (of person), § 87(2)(g)). The frisk yielded negative results, and the officers left the scene. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Body-worn camera (BWC) footage was obtained from the BWCs of Police Officer Demarco (BR 01), Police Officer Daley (BR 02), and Sergeant Cruz (BR 03), and is transcribed in IA #29 (BR 04). Surveillance footage from Yoly was obtained (BR 05, 06) and transcribed in IA #81 (BR 07).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Daniel Demarco stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Ariel Cruz stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Carolyn Daley stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Daniel Demarco frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Ariel Cruz frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Daniel Demarco searched § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on July 18th, 2022 (BR 08). § 87(2)(b) (BR 09) and § 87(2)(b) (BR 10) were interviewed on August 16th, 2022. Police Officer Demarco was interviewed on October 26th, 2022 (BR 11). Sergeant Cruz was interviewed on October 27th, 2022 (BR 12). Police Officer Daley was interviewed on December 6th, 2022 (BR 13).

It is undisputed that Sergeant Cruz, Police Officer Demarco, and Police Officer Daley were on patrol, driving in their police vehicle, when they noticed § 87(2)(b) standing on the corner of Nelson Avenue and Featherbed Lane in the Bronx. § 87(2)(b) was with § 87(2)(b) and § 87(2)(b). Police Officer Demarco was driving and stopped the vehicle to observe the group. § 87(2)(b) and § 87(2)(b) noticed the officers and walked to the opposite corner of Featherbed Lane, entering a restaurant called Yoly. The officers followed the group, exiting their vehicle and entering the restaurant. Police Officer Demarco approached § 87(2)(b) and stated that it looked as if § 87(2)(b) had “something heavy” in his pocket. Police Officer Demarco frisked § 87(2)(b) while Police Officer Daley held onto § 87(2)(b)'s wrist. The officers did not find any weapons on § 87(2)(b) and they left the scene.

§ 87(2)(b) and § 87(2)(b) all stated that § 87(2)(b) had his right hand in his pocket when Police Officer Demarco approached. Police Officer Daley grabbed § 87(2)(b)'s right wrist and attempted to pull his hand out of his pocket. As Police Officer Demarco frisked § 87(2)(b)

§ 87(2)(b) Police Officer Demarco stuck his hand in § 87(2)(b)'s right pocket. Police Officer Demarco did not remove anything from § 87(2)(b)'s pocket.

All officers stated that the area where § 87(2)(b) was stopped was a high-crime area with frequent shootings, including multiple shootings that summer. Police Officer Demarco first noticed § 87(2)(b) and pointed him out to his partners. The officers agreed that § 87(2)(b) had a heavy-weighted rectangular object in his right pocket. None of the officers observed any other characteristics of the object. Police Officer Demarco believed it to be a firearm, and Police Officer Daley and Sergeant Cruz agreed with this assessment. As the officers followed the group down the block, § 87(2)(b) clutched his right pocket, turned the right side of his body away from officers, and glanced back at the officers multiple times. This behavior further led the officers to believe that § 87(2)(b) had a firearm. While Police Officer Demarco stated that the officers mutually agreed to stop § 87(2)(b) Sergeant Cruz and Police Officer Daley both stated that it was Police Officer Demarco's decision to stop § 87(2)(b) Sergeant Cruz stated that he was supervising the stop, and he believed that Police Officer Demarco's assessment justified a stop. Inside the restaurant, § 87(2)(b) placed his right hand in his right pocket and turned his body away from officers. Police Officer Daley stated that she grabbed § 87(2)(b)'s wrist to prevent him from pushing officers away. Police Officer Demarco stated that he frisked the outermost garment of § 87(2)(b)'s pocket, but he did not put his hand in § 87(2)(b)'s pocket. Upon frisking § 87(2)(b) Police Officer Demarco realized that the object in § 87(2)(b)'s pocket was a cell phone. Police Officer Demarco offered § 87(2)(b) a business card before the officers exited the restaurant.

Police Officer Demarco's BWC footage (**BR 01**) begins while the officers are still inside the police car. Police Officer Demarco's exits the vehicle at 45 seconds, and it appears that § 87(2)(b) has already entered Yoly. At 01:00 in the footage, the officers enter the restaurant. Police Officer Demarco approaches § 87(2)(b) and states, "We're looking at you because your right pocket is heavy. Do you got anything in there?" § 87(2)(b) turns away from officers, and Police Officer Demarco grabs his left forearm. Police Officer Demarco reaches for § 87(2)(b)'s right pocket. § 87(2)(b)'s hand is in his pocket, and he asks, "What are y'all touching me for?" Police Officer Daley grabs § 87(2)(b)'s left forearm and states, "Get your hand out of your pocket." Police Officer Demarco frisks § 87(2)(b) before walking away. He does not reach his hand in § 87(2)(b)'s pocket at any point. He offers § 87(2)(b) a business card before exiting the restaurant.

The first surveillance video from Yoly (**BR 05**) begins with § 87(2)(b) and § 87(2)(b) walking to and entering the restaurant at a normal pace. An unmarked black car pulls up in front of the restaurant as they enter. No one exits the unmarked car at this point. At 1:21, the unmarked black car pulls forward and parks in the crosswalk at the intersection. At 1:35, three uniformed officers exit the unmarked black car and approach and enter the restaurant.

The second surveillance video from Yoly (**BR 06**) begins as the officers enter the restaurant and interact with § 87(2)(b) and show the same interactions as that described above in Police Officer Demarco's BWC, but from an overhead angle. No officer is seen reaching their hand into § 87(2)(b)'s pocket from this angle either.

Police Officer Demarco prepared a stop report regarding this incident, which was approved by Sergeant Cruz (**BR 14**). In the stop report, Police Officer Demarco wrote that § 87(2)(b) was observed as having "a rectangular object weighing down his pants pocket," and the object was "making [his] pocket swing back and forth." § 87(2)(b) was "looking over [his] shoulder" at the officers, and he "turned his body while blading it away from police" as he walked away, before entering a nearby restaurant. § 87(2)(b) "kept watching [the] police vehicle... while inside the store." The rectangular object in § 87(2)(b)'s pocket, coupled with § 87(2)(b)'s behavior, was

“consistent with [possession of] a firearm.”

People v. De Bour, 40 N.Y.2d 210 [1976] (**BR 15**) states that, to initiate a Level 3 stop, officers must possess reasonable suspicion, based in “specific,” “concrete,” and “articulable” observations, that an individual has committed a crime. Per People v. Clermont, 133 A.D.3d 612 [2015] (**BR 16**), the courts established that an individual’s flight is not enough to elevate a Level 2 inquiry to a Level 3 stop, even when combined with an officer’s knowledge of criminality in the area. However, when combined with other factors that indicate the subject’s criminality, which must be articulable and directly relevant to the subject, a subject’s flight may rise to the level of reasonable suspicion. To justify a frisk, an officer must be able to articulate “proof of a describable object or of describable conduct which provided a reasonable belief that an individual possessed a gun...” People v. Prochilo, 41 N.Y.2d 759 [1977] (**BR 17**). This describable conduct “must be more than subjective... [and] sufficient to induce an ordinarily prudent and cautious person under the circumstances to believe that criminality is at hand.” Behavior that is “readily susceptible of an innocent interpretation,” such as a subject readjusting their clothing, is not a sufficient factor to determine reasonable suspicion. People v. Howard, 147 A.D.2d 177 [1989] (**BR 18**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 24).
- § 87(2)(b)
 - [REDACTED]
- Sergeant Cruz has been a member of service for 11 years and has been a subject in four complaints and 18 allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Demarco has been a member of service for five years and has been a subject in six cases and 21 allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Daley has been a member of service for three years and has been a subject in seven cases and 15 allegations. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 10th, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 27).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 02

Sein Dore

Investigator: _____ Investigator Teecie Dove 02/15/2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 2/15/2023
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____